Ex Tempore

RUWA ESTATE (PRIVATE) LIMITED
and
ONE MZURI ESTATE (PRIVATE) LIMITED
versus
MINISTER OF LANDS, AGRICULTURE, FISHERIES, WATER AND RURAL DEVELOPMENT N.O
and
THE MINISTER OF LOCAL GOVERNMENT & PUBLIC WORKS N.O
and
REGISTRAR OF DEEDS N.O
and
GLORIOUS PROPERTIES (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
DEME J
HARARE, 4 and 8 June 2026

Opposed Application

G.R.J Sithole with B. Masamvu, for the Applicant
A. Kadungure, for the 1st and 2nd Respondents
T. Bhatasara, for the 4th Respondent

DEME J: The Applicants approached this court seeking a declaratory relief in terms of Section 14 of the High Court Act. In particular, the Applicants are seeking the following relief:

> "1. The Application be and is hereby granted.
>
> 2. The acquisition of the applicant's property, commonly known as Clovadael B of Galway Estate held under Deed of Transfer No. 946/48, by the 1st respondent, be and is hereby declared null and void.
>
> 3. The purported notice and subsequent acquisition of the property known as Clovadael B of Galway Estate under Deed of Transfer No. 946/48 in terms of section 5 (1) of the Land Acquisition Act [Chapter 20:10] and section 16B of the Constitution of Zimbabwe,

respectively, be and are hereby set aside as the said acquisition was not in compliance with section 16B of the former Constitution of Zimbabwe.

4. The endorsement and the purported acquisition of Lots 2-9 and the Remaining Extant of Clovadael B Galway Estate be and is hereby declared null and void for lack of compliance with section 10 (3) of the Land Acquisition Act [Chapter 20:10] and the Third Respondent be and is hereby directed to remove and cancel any caveats or endorsements on Clovadael B of Galway Estate and on Lots 2-9 and the Remaining Extant of Clovadael B of Galway Estate endorsed by either the 1st or 2nd respondents.
5. The conduct of the 1st respondent of acquiring and allocating Clovadael B to 2nd respondent and its subsequent sell to 4th respondent be declared to be null and void and ultra vires General Notice 330A of 2001, section16B of the former Constitution of Zimbabwe and section 3(b) of the Land Acquisition Act.
6. An order that the 1st Respondent pays the Applicants' costs of suit."

The first Applicant claims to be the owner of the property known as Clovadael B of Galway Estate under Deed of Transfer number 946/48 (hereinafter called "the property"). It is alleged by the first Applicant that sometime in 1999, it was granted a subdivision permit in respect of the property. According to the 1st Applicant, the subdivision permit created subdivisions being Lots 2-9 and the Remainder of Clovadael B (hereinafter called "the subdivided land"). It is the averment of the first Applicant that Lots 2-9 were created for agro-residential purposes. Reference was made to Clause 2 of the subdivision permit.

The first Applicant averred that in 2000, the subdivided land was incorporated in the Master Plan for Goromonzi Rural District Council. Reference was made to General Notice 230 of 2000. On 6 July 2001, the property was acquired by Government of Zimbabwe through General Notice 330A of 2001. General Notice 330A of 2001 was incorporated in the Seventh Schedule to the Former Constitution in 2005 as Item 27.

The Applicants averred that the acquisition was illegal as the property had been subdivided at the time of acquisition. Further, the Applicants argued that the subdivided land was not properly acquired. What was acquired, according to the Applicants is the property which was wrongly described. The Applicants averred that the General Notice refers to the property which was no longer in existence. According to the Applicants, the purported acquisition was a nullity.

It was further alleged that the first Respondent submitted to the second Respondent the property for urban expansion. The second Respondent, in turn offered the property to the fourth Respondent for urban development. The fourth Respondent accepted the offer.

Parties had numerous litigations trying to assert their positions. I will not refer to all cases for purposes of the present application. Of particular importance is case number HCH631/24 where the fourth Respondent challenged the nullification of their offer of the property. This court, ruled that the second Respondent's cancellation of the offer is null and *void*. In that order, the fourth Respondent was declared to be the lawful developer of the property in particular, the order is as follows:

> "IT IS ORDERED BY CONSENT THAT:
>
> 1a. The application be and is hereby granted
>
> b. The cancellation by the respondent of the offer for a piece of land situate in Goromonzi District measuring 211.5 hectares called Cloverdale B of Galway Estate to applicant be and is hereby declared null and void and is consequently set aside
>
> c. The applicant be and is hereby declared the sole and lawful developer of Cloverdale B of Galway Estate
>
> d. Each party shall bear its own costs."

The application was opposed by the first, second and the fourth Respondents (hereinafter called "the Respondents" who raised the point *in limine*, to the effect that this court does not have jurisdiction to hear the present application. Reference was made to Section 16 B (3) of the Former Constitution. On this basis, the Respondents prayed for an order that the matter be struck from the roll with costs.

On the merits, the Respondents averred that the property was lawfully acquired. They alleged that the property, at the time of acquisition, was still agricultural land. Reference was made to the subdivision permit attached to the founding affidavit. The Respondents submitted that the subdivision permit and the Master Plan cannot be used to change the use of the land as alleged by the Applicants. According to the Respondents, the first Applicant ought to have followed the correct procedure prescribed by the law in changing the use of the land.

The Respondents further contended that there was no error in the description of the property since the subdivision permit had not been registered with the Deeds Office at the time of acquisition. The Respondents maintained that the first Applicant's subdivision permit was overtaken by the acquisition of the property. On this basis, the Respondents prayed for the dismissal of the application with costs.

In the answering affidavit, the Applicants raised two points *in limine*. Firstly, the Applicants argued that the 1st Respondent is barred having failed to file the opposing papers within time. This point *in limine* was eventually abandoned following the oral application for condonation made by Mr. Kadungure. The application was not opposed by Mr. Sithole.

Secondly, the Applicants raised a further point *in limine* that the deponent to first Respondent's opposing affidavit had no authority from the first Respondent. This point *in limine* was also abandoned by Mr. Sithole.

In the heads of argument, the Applicants raised a further point *in limine.* They averred that the first and fourth Respondents' opposing affidavit were improperly commissioned. Mr. Sithole did not insist on this point *in limine* on the day of hearing.

Before dealing with the question of jurisdiction, I am of the view that it is prudent to deal with the effect of the order granted in case number HCH631/24 on the present application. I raised this issue for the first time on the day of hearing and sought comments from the legal practitioners upon realizing that there is potential of having conflicting orders. What became common cause from the submissions by legal practitioners is that the order in HCH631/24 cannot peacefully coexist with the relief prayed for by the Applicants.

According to Mr. Sithole, the order in HCH631/24 will automatically be overtaken by events once the relief prayed for is granted. He argued that the acquisition was *void ab initio as* the order will be equally affected since the order is hanging on an illegal act. He further argued that the fourth Respondent will be compensated once the present application is granted. Mr. Sithole maintained that the order in HCH631/24 did not confer ownership rights upon the fourth Respondent. According to his submission, the order only declared the fourth Respondent as the lawful developer of the property.

Mr. Bhatasara argued that the present application will affect the order in HCH631/24. He submitted that the present application seeks to reverse the order in HCH631/24. Granting of the present application will expose the second Respondent to suit for breach of contract according to Mr. Bhatasara.

There is no disagreement that the order in HCH631/24 cannot peacefully co-exist with the relief being prayed for. The question which then arises for determination is whether the present application may be granted when the order in HCH631/24 is still extant. In my view, granting the present application will amount to rescission of judgment in HCH631/24. Mr. Sithole argued that the Applicants were not parties to HCH631/24. In my view, this does not preclude them from seeking an appropriate remedy in terms of the Rules to have the order set aside. As long as the order in HCH631/24 has not been set aside, this court cannot issue the present application as doing so would create conflicting orders.

The Applicants were aware of this order. Reference is made to paragraph 41 of the founding affidavit. One wonders why the Applicants ignored taking practical steps in challenging that order. On this basis, I am unable to exercise my discretion given this obstacle. The submission by Mr. Sithole that the order in HCH631/24 is hanging on an illegal act can be raised at the appropriate time when they seek to have the order set aside. I cannot determine the legality or otherwise of the complained acts at this stage. Court order remains valid if it has not been challenged.

This court's jurisdiction to grant Declaratory relief is founded in terms of Section 14 of the High Court Act which reads as follows:

> "The High Court may, in its discretion, at the instance of any interested person, inquire into and determine any existing, future or contingent right or obligation, notwithstanding that such person cannot claim any relief consequential upon such determination."

The requirements for a declarator have been outlined in a number of cases in our jurisdiction. In the case of *Johnson* v *Afc*[1], GUBBAY CJ, as he then was, commented as follows:

[1] 1995 (1) ZLR 65 (S) at p 72E.

> "The condition precedent to the grant of a declaratory order under s 14 of the High Court of Zimbabwe Act 1981 is that the applicant must be an "interested person", in the sense of having a direct and substantial interest in the subject matter of the suit which could be prejudicially affected by the judgment of the court. The interest must concern an existing, future or contingent right. The court will not decide abstract, academic or hypothetical questions unrelated thereto… At the second stage of the enquiry, the court is obliged to decide whether the case before it is a proper one for the exercise of its discretion under s 14 of the Act. It must take account of all the circumstances of the matter."

After a conscientious examination of the order in HCH631/24, I have come to a conclusion that this is not a proper matter for me to exercise my discretion given that such order is still extant and has not been set aside. It is therefore a futile exercise to deal with the rest of the issues if the order in HCH631/24 is still in force. In the circumstances, the present application is improperly before the court. It ought to be struck from the roll with costs. Such order will leave the Applicants with a remedy of challenging the order in HCH631/24, if they so wish and thereafter approach the court with a similar relief. A dismissal will put the Applicants out of court. Reference is made to the case of Nhari v Mugabe [2] where the court held that:

> "It is a contradiction in terms to dismiss a matter on the twin bases that it not urgent and that the applicant has no *locus standi* for the latter basis indicates that a decision on the merits of the application has been made in which event the applicant is barred from placing the matter on the ordinary roll for determination. The effect of the dismissal on the latter basis is that the applicant is put out of court and is deprived of his right to have the matter properly ventilated in a court application or trial. Where, however, the matter is struck off the roll for lack of urgency, the applicant, if so advised, may place the matter on the ordinary roll for hearing." (at pp 8 – 9 of the judgment)"

In the result, it is ordered as follows:

[2] SC161/20.

On the basis of an extant order in HCH631/24, the present application be and is hereby struck from the roll with costs.

DEME J:…….....

Masamvu and Da Silva-Gustavo, Applicants' Legal Practitioners.
Civil Division, first and second Respondents' Legal Practitioners.
Bhatasara Attorneys, fourth Respondent's Legal Practitioners.